EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 47871/17
CHURCH OF SCIENTOLOGY OF ST PETERSBURG AND OTHERS
against Russia

The European Court of Human Rights (Third Section), sitting on 23 November 2021 as a Committee composed of:

Peeter Roosma, *President,*
Dmitry Dedov,
Andreas Zünd, *judges,*
and Olga Chernishova, *Deputy Section Registrar,*

Having regard to the above application lodged on 27 June 2017,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicants,

Having deliberated, decides as follows:

THE FACTS

1. A list of the applicants is set out in the appendix.

2. The Government were represented initially by Mr M. Galperin, Representative of the Russian Federation to the European Court of Human Rights, and then by his successor in that office, Mr A. Fedorov.

A. The circumstances of the case

3. The facts of the case, as submitted by the parties, may be summarised as follows.

4. The applicants are the religious group of the Church of Scientology St Petersburg and individual Scientology believers. Formerly they were the applicants in the case of *Church of Scientology of St Petersburg and Others v. Russia*, no. 47191/06, 2 October 2014. In that case the Court found a violation of Article 9 of the Convention, interpreted in the light of Article 11, on account of the refusal of the Russian authorities to grant legal-entity status to their religious group because it had not been shown

that it had existed for at least fifteen years. The domestic courts identified a number of formal defects in the application for registration, such as incorrect name of the applicant group's management body, incorrect reference to the representative, unlawful procedure for the election of the president and internal audit commission, violations of the Religions Act as regards the minimum number and age of members and their place of residence, and editorial inconsistencies, unclear wording in articles of association and inaccurate use of terms.

5. Following the Court's judgment, on 14 May 2015 the individual applicants asked the domestic courts to re-open the proceedings.

6. On 23 June 2015 the Oktyabrskiy District Court of St Petersburg held that the Court's judgment concerned only the application of the fifteen-year requirement and did not have any impact on the overall lawfulness of the refusal to re-register the applicant church. That decision was quashed on appeal by the St Petersburg City Court, the case was reopened and sent to the District Court for fresh examination. On 18 December 2015 the District Court gave a new judgment. It held that the initial registration proceedings had been deficient; however given that the applicants had submitted their documents for registration more than 10 years ago and that many changes to the existing law had been made since the events complained of, the Justice Department could not be required to perform registration and the proceedings had to be started anew. This decision was upheld on appeal on 27 April 2016 and subsequent cassation appeals were rejected on 23 August and 27 December 2016 by the St Petersburg City Court and the Supreme Court of Russia, respectively.

7. The applicants have not informed the Court of any new registration proceedings.

B. Relevant domestic law and materials relating to execution of the judgment in case no. 47191/06

8. On 24 July 2015 the Religions Act (Federal Law No. 125-FZ of 26 September 1997) was amended to exclude the requirement for a religious organisation to have existed in a given territory for a minimum of 15 years.

9. The execution proceedings of the judgment in case no. 47191/06 are still pending before the Committee of Ministers. The applicants received compensation awarded by the Court.

COMPLAINT

10. The applicants complained under Articles 9 and 11 of the Convention about the authorities' refusal to register the applicant church as a religious organisation.

THE LAW

11. The applicants stated that after the quashing of the original decision the domestic courts had been obliged to order the Justice Department to register the applicant church as a religious organisation in order to redress the breach. The domestic courts had taken new decisions and these decisions, which constituted a new instance of interference, had not remedied a violation of their rights under Article 9 and 11.

12. The Government submitted that after the judgment in case no. 47191/06 the applicants could have filed a new request for registration. As they had not done so, there had not been any new interference with their rights.

13. The role of the Committee of Ministers, under Article 46 § 2 of the Convention, to supervise the execution of the Court's judgments, does not mean that measures taken by a respondent State to implement a judgment delivered by the Court cannot raise a new issue undecided by the judgment and thus form the subject of a new application that may be dealt with by the Court (see *Mehemi v. France (no. 2)*, no. 53470/99, § 43, ECHR 2003-IV, and *Verein gegen Tierfabriken Schweiz (VgT) v. Switzerland (no. 2)* [GC], no. 32772/02, § 62, ECHR 2009). Reference is made, in this context, to the criteria established in the case-law concerning Article 35 § 2 (b) of the Convention, by which an application is to be declared inadmissible if it "is substantially the same as a matter that has already been examined by the Court ... and contains no relevant new information" (see *Verein gegen Tierfabriken Schweiz (VgT)*, cited above, § 63).

14. The Court must therefore ascertain whether the present application contains relevant new information possibly entailing a fresh violation of Article 9 interpreted in the light of Article 11, for the examination of which the Court is competent *ratione materiae*, or whether it concerns only the execution of the initial application.

15. After the Court's judgment in case no. 47191/06, the applicants asked the domestic courts to order the Justice Department to register the applicant church as a religious organisation. Although the domestic courts in their decisions on the case dismissed the applicants' claim, they also acknowledged that the registration proceedings had been defective and affirmed thereby the position expressed by the Court in its judgment (see paragraph 6 above).

16. In these circumstances, the domestic courts' decisions were not based on relevant new grounds capable of giving rise to a fresh violation of Article 9 interpreted in the light of Article 11 (see *Steck-Risch and Others v. Liechtenstein* (dec.), no. 29061/08, 11 May 2010).

17. The applicants did not engage in any new registration proceedings (see, by contrast, *The United Macedonian Organisation Ilinden – PIRIN*

and Others v. Bulgaria (no. 2), nos. 41561/07 and 20972/08, § 64, 18 October 2011).

18. Moreover, the "fifteen-year rule" was removed from the Religions Act, in order to ensure that the violation found by the Court would not be repeated in future cases. The Government paid the sums awarded to the applicants in case no. 47191/06. As to other measures which might be taken to remedy the violation found, this is a matter of an on-going discussion between the Committee of Ministers and the respondent Government. Subject to monitoring by the Committee of Ministers, the respondent State remains free to choose the means by which it will discharge its legal obligation under Article 46 of the Convention, provided that such means are compatible with the conclusions set out in the Court's judgment. For its part, the Court cannot assume any role in this dialogue (see *Lyons and Others v. The United Kingdom* (dec.), no. 15227/03, 8 July 2003; *Egmez v. Cyprus* (dec.), no. 12214/07, § 48, 18 September 2012; and *Kudeshkina v. Russia (no. 2)* (dec.), no. 28727/11, § 99, 17 February 2015).

19. Having regard to the foregoing finding that the Court is not competent to examine the applicants' complaint, the present application must be rejected as incompatible *ratione materiae* with the provisions of the Convention, pursuant to Article 35 §§ 3 and 4.

For these reasons, the Court, unanimously,

Declares the application inadmissible.

Done in English and notified in writing on 16 December 2021.

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Olga Chernishova
Deputy Registrar

Peeter Roosma
President

Appendix

No.	Applicant's Name	Year of birth/creation	Nationality	Place of residence
1.	CHURCH OF SCIENTOLOGY OF ST PETERSBURG	1984	Russian	St Petersburg
2.	Yulia Anatolyevna BRYNTSEVA	1977	Russian	St Petersburg
3.	Galina Georgiyevna FROLOVA	1955	Russian	St Petersburg
4.	Ivan Vladimirovich MATSITSKIY	1975	Russian	St Petersburg
5.	Nadezhda Ivanovna SHCHEMELEVA	1955	Russian	St Petersburg
6.	Galina Petrovna SHURINOVA	1954	Russian	St Petersburg
7.	Anastasia Gennadyevna TERENTYEVA	1979	Russian	St Petersburg